

1.

CASE #	CASE NAME	HEARING NAME
CVME2602412	DOE VS MURRIETA VALLEY UNIFIED SCHOOL DISTRICT	DEMURRER/MOTION TO STRIKE

Tentative Ruling: Demurrer sustained to the Fourth (Negligent Failure to Warn, Train, or Educate) and Fifth (Intentional Infliction of Emotional Distress) causes of action with 30 day leave to amend. Demurrer is overruled on the Ninth (Sexual harassment and Abuse in Educational Setting) cause of action. Special Demurrer for Uncertainty CCP 430.10(f) is overruled. Motion to Strike punitive damages is granted and denied as to “any appropriate statutory damages.

Standard - A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (CCP § 430.10(e).) In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) The court assumes the truth of all material facts which have been properly pleaded, of facts which may be inferred from those expressly pleaded, and of any material facts of which judicial notice has been requested and may be taken. (*Crowley v. Katleman* (1994) 8 Cal.4th 666, 672.) However, a demurrer does not admit contentions, deductions or conclusions of fact or law. (*Daar v. Yellow Cab Company* (1967) 67 Cal.2d 695, 713.) Facts appearing in exhibits attached to the complaint will also be accepted as true and, if contrary allegations appear in the complaint, will be given precedence. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 606.) If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

Fourth and Fifth Causes of Action - As to the fourth and fifth causes of action, the Defendant Murrieta Valley Unified School District (District) argues that both fail to identify a viable statute that creates a duty or authorizes liability against a public entity.

“Tort claims may not be maintained against a public entity unless they are based on a statute or are required by the federal or state constitutions.” (*Lundeen Coatings Corp. v. Department of Water & Power* (1991) 232 Cal.App.3d 816, 832.) Unless provided by statute, a public entity is not liable for an injury. (Gov. Code § 815(a).) A public entity is liable for injury proximately caused by an act or omission of an employee of the public entity within the scope of his or her employment if the act or omission would have given rise to a cause of action against the employee, unless the employee is immune. (Gov. Code § 815.2.) There is no common law tort liability for public entities—only statutory. (*Green Valley Landowners Association v. City of Vallejo* (2015) 241 Cal.App.4th 425, 441-442.)

The fourth cause of action is for negligent failure to warn and the fifth is for IIED. Neither cause of action specifies a statutory basis for liability. While the general allegations reference various statutes under which the District can be vicariously liable, in order to state a cause of action against a government entity, every fact essential to the existence

of statutory liability must be pled with particularity. (See *Searcy v. Hemet Unified School Dist.* (1986) 177 Cal. App. 3d 792, 802.)

Ninth Cause of Action - The third cause of action is for sexual harassment and abuse in an educational setting. It cites to Government Code § 220. District argues that the cited statutes do not impose a mandatory duty on Defendant, as a school district, and that it cannot be vicariously liable for Rhoades' sexual misconduct because it was outside the course and scope of his employment.

First, the argument is incorrect that as an absolute rule, District be liable for Rhoades' alleged conduct. If properly identified and pled, there can be a statutory basis of liability.

The reference to Education Code § 220 seemingly attempts to impose liability via violation of a mandatory duty. Under Government Code § 815.6, public entity is subject to liability for a breach of a mandatory duty absent an exercise of reasonable diligence to discharge the duty. "First and foremost, application of section 815.6 requires that the enactment at issue be *obligatory*, rather than merely discretionary or permissive, in its directions to the public entity; it must *require*, rather than merely authorize or permit, that a particular action be taken or not taken. [Citation.] It is not enough that the public entity or officer have been under an obligation to perform a function if the function itself involves the exercise of discretion. [Citation.] [Citation.] Courts have construed this first prong rather strictly, finding a mandatory duty only if the enactment "affirmatively imposes the duty and provides implementing guidelines.'" (*Guzman v. County of Monterey* (2009) 46 Cal.4th 887, 898.)

Education Code § 220 states that no person shall be subjected to discrimination on the basis of disability, gender, gender identity, gender expression, nationality, race or ethnicity, religion, sexual orientation, or any other characteristic...in any program or activity conducted by an educational institution that receives, or benefits from state financial assistance, or enrolls pupils who receive state student financial aid.

The Court does not agree with the argument that Education Code § 220 does not create a mandatory duty. In *Donovan v. Poway Unified School Dist.* (2008) 167 Cal.App.4th 567, 579, the Court found that harassment by students against another student based on that student's sexual orientation could constitute discrimination under Education Code § 220. To prevail on such a claim, the court in *Donovan* found that the plaintiff must show: "(1) he or she suffered 'severe, pervasive and offensive harassment that effectively deprived the plaintiff of the right of equal access to educational benefits and opportunities; (2) the school district had 'actual knowledge' of that harassment; and (3) the school district acted with 'deliberate indifference' in the face of such knowledge." (*Donovan, supra*, at p. 579.)

In *Donovan*, the Court goes on to state that Education Code § 220 is based on Title IX of the Federal Education Amendments of 1972 ("Title IX"). (*Donovan, supra*, at p. 596.) Courts have applied Title IX to a student's claim of sexual harassment and abuse by a teacher, where the school personnel knew of the harassment and failed to stop it. (*Id.* at 599; *Franklin v. Gwinnett County Public Schools* (1992) 503 US 60, 75 (Title IX applies when a school employee sexually harasses and abuses a student).) Since California has adopted Title IX standards when interpreting Education Code § 220,

Plaintiff must allege the three elements noted above (suffered harassment that deprived Plaintiff to equal access; actual knowledge; deliberate indifference).

Plaintiff does so here, alleging that Plaintiff was harmed by being subjected to harassment at Thomason Middle School, that the harassment was so severe and pervasive, that it deprived Plaintiff of the right of equal access, and that District had actual knowledge. (Complaint, ¶¶ 126-128.) This is sufficient for pleading purposes.

Special Demurrer for Uncertainty – Merits - District also argues that the three challenged causes of action are uncertain. Demurrers for uncertainty are generally disfavored. (*Chen v. Berenjian* (2019) 245 Cal.App.5th 811.) To that end, demurrers for uncertainty will only be sustained where the defendant cannot reasonably determine what issues must be admitted or denied, or what claims are directed against him; or where the pleading is so incomprehensible that a defendant cannot reasonably respond. (*Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 616; *Mahan v. Charles W. Chan Ins. Agency, Inc.* (2017) 14 Cal.App.5th 841, 848, fn. 3.) Demurrers for uncertainty are to be overruled when addressed to inconsequential matters, the facts are within the knowledge of the defendant or ascertainable in discovery, or not dispositive of one or more causes of action. (*Khoury, supra*, at p. 616.)

None of the challenged causes of action are so uncertain that the District cannot reasonably determine the general crux of the allegations. The causes of action are not so incomprehensible that the District cannot respond. Therefore the special demurrer for uncertainty under CCP § 430.10(f) is overruled.

Motion to Strike – Merits

The District also moves to strike Plaintiff's request for punitive damages and for "statutory damages." The court may, upon a motion made pursuant to CCP § 435:

- (a) Strike out any irrelevant, false, or improper matter inserted in any pleading.
- (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.

In opposition, Plaintiff agrees to withdraw the request for punitive damages. (See Declaration of Ariel Romero, Exhibit B.) Government Code § 818 provides that a public entity may not be held liable in tort for "damages imposed primarily for the sake of example and by way of punishing the defendant." (*Los Angeles Unified School Dist. v. Sup.Ct. (Doe)* (2023) 14 Cal.5th 758, 764.)

This leaves the request for "any appropriate statutory damages." (Complaint, Prayer, ¶ 4.) The District argues that because the complaint fails to specifically identify any such statutes, that it impliedly requests punitive damages. The District's assumptions are not grounds for a motion to strike. The complaint seeks appropriate statutory damages and as the parties point out, punitive damages are not appropriate against a public entity. Plaintiff may be entitled to other statutory damages against the District and to strike this request would be improper. Therefore, the motion to strike the request for punitive

damages against the District is granted and the request to strike the request for “any appropriate statutory damages” is denied.”